



CHAPTER lxxvii.

An Act to vest in the urban district council of A.D. 1929.
Newport (Salop) the property and liabilities of
the Newport Town and Marsh Trustees to make
provision in regard to the supply of gas by the
Council and for other purposes. [10th May 1929.]

WHEREAS the urban district of Newport (Salop) (in this Act referred to as "the district") is an urban district within the meaning of the Local Government Act 1894 and is under the management and local government of the urban district council of Newport (Salop) (in this Act referred to as "the Council") :

And whereas by the Newport (Salop) Marsh Improvement Act 1854 (in this Act referred to as "the Act of 1854") the Newport Town and Marsh Trustees (in this Act referred to as "the trustees") were incorporated with perpetual succession and a common seal and with power to take purchase and hold lands for the purposes of the Act :

And whereas the trustees consisted of certain persons named in section IX of the Act of 1854 together with the incumbent of the parish of Newport for the time being and the headmaster of the free grammar school at Newport subject to the provision that when the number of trustees should be reduced to seven not including ex-officio trustees the surviving or remaining trustees should apply to a judge of the High Court of Chancery for the appointment of new trustees and should

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A.D. 1929. be at liberty to propose the names of persons to be appointed new trustees :

And whereas by the Act of 1854 certain lands described in the schedule to that Act and all other the lands and real and personal property including the soil of the public streets and the market hall and public cross of the town of Newport together with all choses in action rights privileges claims and demands whatsoever which immediately before the passing of the Act of 1854 were vested in or belonged to certain trustees under an Act passed in the fourth year of the reign of His Majesty King George III including certain invested funds were vested in the trustees and the trustees were authorised to acquire lands to construct a public road and other works to borrow money and to exercise the other powers more particularly set forth in the Act of 1854 for the improvement and benefit of the town of Newport which is now comprised within the district :

And whereas by the same Act the trustees were authorised to apply the moneys and funds for the time being received by them or under their management or control to the several purposes in the Act of 1854 mentioned including the payment of the necessary expenses of executing the trusts of the Act the payment of principal and interest in respect of borrowed moneys the paving and keeping in repair of the public streets called High Street and Saint Mary Street the repair and keeping in repair of the works connected with a bridge therein referred to as "the Stone Bridge" the repair and keeping in repair of the market hall and public cross the making of such an annual allowance as the trustees should from time to time think fit (not exceeding in any one year the sum of twenty pounds) for or towards the maintenance of the National School for Girls in the town of Newport and lastly for the several and respective purposes and objects by the Act of 1854 authorised or such of them as the trustees should from time to time agree upon and in such order and proportion as the trustees should from time to time think fit :

And whereas the Charity Commissioners by order made on the twentieth day of February one thousand nine hundred and twelve under subsection (2) of section 2 of the Board of Education Act 1899 have determined that the part of the moneys and funds of the trustees

which is held for or ought to be applied for educational purposes consists of a yearly sum of ten pounds out of the net yearly income of the trustees and have allocated the sum of four hundred pounds of two pounds ten shillings per centum consolidated stock being part of the said funds in satisfaction of the said yearly sum to be placed by the official trustee of charitable funds to a separate account for the credit of the Newport Town and Marsh Educational Foundation : A.D. 1929.
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And whereas the said Stone Bridge no longer exists and there is no market hall belonging to the trustees and the said High Street and Saint Mary Street have for many years past been repaired by the Council and the cost thereof has been defrayed in the case of Saint Mary Street out of the rates levied by the Council and in the case of High Street out of rates levied by the Salop County Council :

And whereas the general control of the roads and other public properties and the government and administration of the local affairs of the district in respect of which powers and obligations were by the Act of 1854 conferred and imposed upon the trustees are now by the operation of the general law vested in the Council and it is expedient that the properties rights and liabilities now vested in the trustees should be transferred to the Council and that the Act of 1854 should be repealed :

And whereas the estate now vested in and belonging to the trustees consists of the several funds lands buildings properties rights and privileges set forth in the First Schedule to this Act in addition to the said sum of four hundred pounds of two pounds ten shillings per centum consolidated stock :

And whereas portions of the said lands under and by virtue of indentures of lease dated the twenty-eighth day of August one thousand eight hundred and thirty-five the twenty-fifth day of March one thousand eight hundred and fifty-eight and the seventh day of November one thousand nine hundred and fourteen have been leased to the Newport Gas Light and Coke Company Limited or their predecessors for a term of years expiring on the twenty-eighth day of July one thousand nine hundred and thirty-four for the purposes of the construction of gas works subject in each case to the right

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A.D. 1929. of the trustees on the expiration of the said leases to resume possession of the lands and all and singular the gas pipes and other fixtures articles and things connected with the gas holders erected thereon and the manufacture conveyance and consumption of the gas under through and upon the streets :

And whereas the said Newport Gas Light and Coke Company Limited by means of the works constructed on the said lands are now affording supplies of gas in the district and in certain adjoining areas and it is expedient to make provision for the management of the gas undertaking by the Council after it shall have become vested in them at or before the expiration of the said leases :

And whereas it is expedient that the other provisions contained in this Act be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

PART I.

PRELIMINARY.

Short title. 1. This Act may be cited as the Newport (Salop) Urban District Council Act 1929.

Division of Act into Parts. 2. This Act is divided into Parts as follows :—
Part I.—Preliminary.
Part II.—Transfer of Marsh Estate.
Part III.—Gas.
Part IV.—Financial.
Part V.—Miscellaneous.

3.—(1) The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with and form part of this Act (that is to say) :—

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Incorporation of
Acts.

The Lands Clauses Acts except the provisions thereof with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the promoters of the undertaking and except section 127 of the Lands Clauses Consolidation Act 1845;

The Gasworks Clauses Act 1847;

The Gasworks Clauses Act 1871.

(2) In the application to the Council of the Gasworks Clauses Act 1847 section 13 shall be read as if the words “or any premises” were inserted after the words “private building” and as if the words “Provided that every such contract entered into by the undertakers shall be alike in terms and amount to all consumers of gas supplied in like circumstances and for the same purposes” were added at the end of that section.

4. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Acts or the Gas Regulation Act 1920 have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act unless the subject or context otherwise requires—

Interpretation.

“The Council” means the urban district council of Newport (Salop);

“The district” means the urban district of Newport (Salop);

“The Act of 1764” means the Act passed in the fourth year of the reign of His Majesty King George III intituled “An Act for dividing
“and inclosing a waste ground called the
“Marsh in the township of Newport in the
“County of Salop and for applying the produce
“thereof to the several purposes therein mentioned”;

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- “ The Act of 1854 ” means the Newport (Salop) Marsh Improvement Act 1854;
- “ The trustees ” means the Newport Town and Marsh Trustees incorporated under the Act of 1854;
- “ The Marsh Estate ” means the properties of the trustees described in the First Schedule to this Act and all other the real and personal property rights and privileges vested in the Council by this Act and any other lands held and enjoyed by the Council in connection therewith;
- “ The gas undertaking ” means the undertaking of the Council for the supply of gas as for the time being authorised;
- “ The limits of supply ” means the limits within which the Council are for the time being authorised to supply gas;
- “ The clerk ” and “ the treasurer ” mean respectively the clerk and the treasurer of the Council and respectively include any person duly appointed by the Council to discharge temporarily the duties of any such officers;
- “ The general rate fund ” and “ the general rate ” mean respectively the general rate fund and the general rate of the district;
- “ Statutory security ” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Council;
- “ Statutory borrowing power ” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing

money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed;

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“Revenues of the Council” includes the revenues of the Council from time to time arising from any land undertaking or other property for the time being of the Council and the rates or contributions leviable by or on the order or precept of the Council.

PART II.

TRANSFER OF MARSH ESTATE.

5. This Part of this Act and the other provisions of this Act relating to the trustees and their properties powers rights and privileges shall except so far as may be otherwise expressly provided come into operation on the first day of April one thousand nine hundred and thirty which date is in this Act referred to as “the appointed day.”

Commence-
 ment of
 Part II
 of this Act.

6. On the appointed day the trustees shall be dissolved and as from that date the lands and other properties of the trustees described in the First Schedule to this Act and all other the real and personal property together with all rights privileges claims and demands whatsoever which immediately before the appointed day are vested in or belong to or are held on behalf of the trustees (except the sum of four hundred pounds of two pounds ten shillings per centum consolidated stock referred to in the preamble to this Act) shall by virtue of this Act be transferred to and vested in the Council for the same estates and interests respectively and subject to the same charges and incumbrances for and subject to which the same would have been

Property
 and liabili-
 ties of
 trustees
 transferred
 to Council.

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A.D. 1929. — held by the trustees if this Act had not been passed and all liabilities and obligations which immediately before the appointed day attached to the trustees (other than those relative to the application of their revenues and funds contained in the Act of 1854) shall by virtue of this Act be transferred and attach to the Council.

Powers
and duties
of trustees
prior to
appointed
day.

7. The trustees shall continue to discharge and execute their powers rights and privileges until the appointed day in the same manner as heretofore but the trustees shall not without the consent of the Council expend any money on capital account between the date of the passing of this Act and the appointed day.

Officers to
account.

8. All officers and persons who have or shall have in their possession or under their control any money books documents deeds bonds papers writings or effects belonging to the trustees or to which the trustees were at the commencement of this Act or but for this Act would be entitled shall be liable to account for and to deliver up and shall account for and deliver up the same to or to the order of the Council in like manner and subject to the like process and penalties for refusal or neglect as if such officers or persons had originally been appointed by or become possessed of such money books documents deeds bonds papers writings or other effects or any of them for and on behalf of the Council.

Compen-
sation to
existing
officers of
trustees.

9.—(1) Every officer or servant of the trustees who by virtue of this Act or of anything done in pursuance or in consequence thereof suffers any direct pecuniary loss by abolition of office or by determination of his appointment or by diminution or loss of fees salary or emoluments and for whose compensation for that loss provision is not made by any other enactment for the time being in force shall be entitled to compensation from the Council for that loss.

(2) The provisions contained in the Sixth Schedule to the Rating and Valuation Act 1925 shall apply to the determination and payment of compensation under this section to officers and servants of the trustees and for the purpose of these provisions the Council shall be the compensating authority Provided that

in the application of the provisions of the said schedule to the determination and payment of compensation paragraph 2 of the said schedule shall be read as if the words "after he has attained the age of eighteen years" were inserted after the word "officer" where that word secondly appears in that paragraph. A.D. 1929.
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10. If on the appointed day any action arbitration or proceeding or any cause of action arbitration or proceeding is pending or existing against or in favour of the trustees the same shall not abate or be discontinued or in anywise prejudicially affected by reason of anything in this Act contained but the same may be continued prosecuted and enforced by against or in favour of the Council as and when it might have been continued prosecuted and enforced by against or in favour of the trustees if this Act had not been passed. Actions not to abate.

11. All agreements conveyances contracts deeds and other instruments entered into or made by the trustees and subsisting on the appointed day shall be as binding and of as full force and effect against or in favour of the Council and may be enforced as fully and effectually as if instead of the trustees the Council had been a party thereto. Contracts to be binding on Council.

12. All books and documents which if the transfer had not been made would have been evidence in respect of any matter for or against the trustees shall be admitted in evidence in respect of the same or the like matter for or against the Council. Books &c. to remain evidence.

13.—(1) All owners and occupiers of lands adjoining the Marsh described in the preamble to the Act of 1854 who under or by virtue of the Act of 1764 were bound by tenure or otherwise to make support cleanse or maintain the fences and ditches between their respective lands and the said Marsh at all times hereafter and to the same extent as they were bound previously to the passing of the Act of 1854 shall make support and maintain the said fences and cause the said ditches to be sufficiently widened and well and effectually scoured and cleansed from weeds and other obstructions. Owners of adjoining lands to keep their fences in repair.

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(2) If any such owner or occupier shall for twenty days next after notice in writing to him given by the Council refuse or neglect to make or keep or sufficiently maintain to such extent as aforesaid such his fences or to make or keep such his ditches of sufficient width and depth to such extent as aforesaid for conveying the waters therein or to scour or cleanse the same to such extent as aforesaid from weeds or other obstructions then and in any of such cases it shall be lawful for the Council to cause the same respectively to be done and to recover the expenses incurred in that behalf from such owner or occupier in a summary manner as a civil debt.

Modifica-
tion of
Newport
(Salop)
Markets
Act 1858.

14. Section 34 (The Newport Town and Marsh Trustees authorised to appropriate part of their funds towards the undertaking) of the Newport (Salop) Markets Act 1858 and any other unrepealed statutory provisions relating to the property rights and privileges transferred to the Council under this Act shall apply as fully and effectually to and in connection with the said property rights and privileges in the hands of the Council as they applied to and in connection with the same in the hands of the trustees before the appointed day.

Repeal of
Act of 1854.

15. The Act of 1854 is hereby repealed as from the appointed day.

Power to
develop
lands &c.

16.—(1) The Council may with respect to any lands forming part of the Marsh Estate and with respect to any other lands for the time being belonging to them and not required for the purpose for which they were acquired exercise all or any of the following powers (that is to say):—

(a) They may redeem or purchase or contract to purchase any chief rent tithe rent-charge or other rent or rentcharge affecting the said lands or any part thereof;

(b) They may with the consent of the Minister of Health lay out and develop any such lands and execute any works of drainage or improvement in connection therewith and on any such lands may erect and maintain houses shops offices warehouses and other

buildings and construct sewer pave flag channel A.D. 1929.
and kerb streets roads and ways; —

- (c) They may grant any easements rights or privileges in under or over any such lands and may pull down and remove any house or other building situate on any such lands and use or dispose of the materials thereof.

(2) The Council may also sell lease exchange or otherwise dispose of any houses shops offices warehouses or buildings erected or situate on any such lands and subject to such terms conditions and restrictions as they may think fit including conditions and restrictions as to the buildings to be erected and the use to which such buildings may be put.

(3) The provisions of this section shall be in addition to and not in derogation of any other powers vested in or exerciseable by the Council.

(4) Notwithstanding the foregoing provisions of this section the Council shall not under the powers of this section—

- (a) lay out or develop any lands or erect on any lands any houses shops offices warehouses or other buildings in any manner which infringes any then existing legal right of any owner lessee or occupier of adjoining lands; or
- (b) except with the consent of the Minister of Health sell lease or dispose of any such houses or other buildings except at the best price or on the best terms which can reasonably be obtained but nothing in this subsection shall require a purchaser or lessee from the Council to inquire whether the consent of the Minister of Health is necessary or has been obtained.

17.—(1) The Council notwithstanding that the same may not be immediately required may by agreement purchase or acquire or take on lease and hold any lands which in their opinion it is desirable the Council should acquire for or connected with the purposes of any of their undertakings powers or duties or for the benefit improvement or development of the district and with the consent of the Minister of Health may borrow money for the purchase or acquisition of such lands or for the

Further
powers for
acquisition
of lands.

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Any moneys so borrowed shall be repaid within such
period as may be prescribed by the Minister of Health.

(2) When any lands purchased or acquired or taken
on lease by the Council under this section shall be
appropriated to any undertaking or to any of their
powers or duties a transfer of the outstanding loan in
respect thereof shall be effected to the proper account in
the books of the Council and pending such appropriation
all expenses incurred by the Council under this section
shall be payable out of the general rate fund and general
rate.

Retention
and dis-
posal of
lands.

18.—(1) Notwithstanding anything in any other
Act or Acts or otherwise to the contrary the Council may
retain hold and use for such time and for such purposes
as they may think fit or may sell lease exchange or
otherwise dispose of in such manner and for such con-
sideration and purpose and on such terms and conditions
as they may think fit and either in consideration of the
erection of buildings or the execution of works or of the
payment of a gross sum or of an annual rent or of any
payment in any other form any lands forming part of the
Marsh Estate or any interest therein or any other lands
or any interest therein acquired by them under this Act
or any general or local Act for the time being in force in
the district (other than the Housing Act 1925 or any
enactment repealed thereby) and may sell exchange or
dispose of any rents reserved on the sale lease exchange
or disposition of such lands or interests therein and may
make do and execute any deed act or thing proper for
effectuating any such sale lease exchange or other
disposition and on any exchange may give or take any
money for equality of exchange :

Provided that the Council shall not without the
consent of the Minister of Health sell lease exchange or
otherwise dispose of any such lands or any interest
therein at a price or rent or for a consideration of a
value less than the current market value of such lands or
interests but a purchaser or lessee shall not be concerned
to inquire whether the consent of the Minister of Health
is necessary or has been obtained :

Provided also that nothing in this section shall be
taken to dispense with the consent of the Minister of

Health to any sale lease appropriation or other disposition of any lands of the Council in any case in which such consent would have been required if this Act had not been passed. A.D. 1929.
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(2) Nothing in this section contained shall release the Council or any person purchasing or acquiring any lands from them under this section from any rents covenants restrictions reservations terms or conditions made payable by or contained in any conveyance lease or other deed or instrument by which any such lands were or may hereafter be conveyed or leased to or otherwise acquired by the Council or any person from or through whom the Council may have derived or may hereafter derive title to the same but all such rents covenants restrictions reservations terms and conditions shall remain and be of as full force and effect and may be recovered exercised enjoyed and enforced in like manner and to the same extent as if this Act had not been passed.

19.—(1) The Council may accept a surrender of any lease or letting granted by them or by the trustees of lands vested in them by or acquired under the powers of this Act or any general or local Act for the time being in force within the district and in their discretion grant either to the lessee or tenant under the surrendered lease or letting or to any other person a new lease or letting of all or any of the lands leased or let by the surrendered lease or letting and may grant reversionary leases of all or any of such lands as aforesaid. Powers with reference to leases of lands.

(2) The Council may enter into and carry into effect any agreement for or with respect to the surrender or grant of any such lease or letting and may in any such lease letting or agreement give to the lessee or tenant or intended lessee or tenant an option or right to purchase the fee simple in reversion or other the reversionary interest of the Council of or in all or any of the lands leased or let or agreed to be leased or let at such time and on such terms and conditions as may be determined by the Council in their discretion :

Provided that any such lease granted by the Council shall be subject to similar conditions and limitations as are prescribed in the last preceding section of this Act with respect to leases granted thereunder.

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Proceeds
of sale of
surplus
lands.

20.—(1) The Council may so far as they consider necessary apply subject to the approval of the Minister of Health any capital moneys received by them on the sale re-sale or exchange of or by leasing any lands vested in them by or acquired by them under the authority of this Act in the purchase of other lands but as to capital moneys so received and not so applied the Council shall apply the same in or towards the extinguishment of any loan raised by them under the powers of this or any other Act and such application shall be in addition to and not in substitution for any other mode of extinguishment of such loan except to such extent and upon such terms as may be approved by the Minister of Health.

(2) Any capital moneys received by the Council on the sale re-sale or exchange of or by leasing any lands acquired under any Act other than this Act shall be applied in the same manner as capital moneys received under that Act are applicable or in such other manner as may be approved by the Minister of Health.

PART III.

GAS.

Commence-
ment of
Part III
of this Act.

21. This Part of this Act and the other provisions of this Act relating to gas shall come into operation as from the date of the expiration or sooner determination of the leases referred to in the preamble to this Act which date is in this Act referred to as “the date of the commencement of this Part of this Act.”

Limits of
supply.

22. The limits of the Council for the supply of gas shall extend to and include the district and the parishes of Chetwynd Aston Chetwynd Rural Church Aston Rural Edgmond and Longford in the rural district of Newport in the county of Salop and the parish of Forton in the rural district of Gnosall in the county of Stafford.

On failure
of Council
other under-
takers may
apply for
powers.

23. If after the expiration of five years from the date of the commencement of this Part of this Act the Council have not laid down or provided mains for the supply of gas in the parishes of Edgmond and Forton the local authority or any company or person may apply

for an Act of Parliament or Special Order for the purpose of providing such a supply and for the repeal of the powers of the Council in that behalf. A.D. 1929.
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24. Subject to the provisions of this Act the Council may upon the lands described in the Second Schedule to this Act upon which the existing gas works of the Newport Gas Light and Coke Company Limited are erected maintain work alter improve and renew gas works with all necessary machinery and apparatus and do all such acts as may be proper for making and storing gas and for supplying gas within the limits of supply and may also on the said lands work up and convert the residual products arising directly or indirectly from the manufacture of gas. Power to maintain gas works &c.

25.—(1) Within three months from the date of the commencement of this Part of this Act the Council shall give notice by advertisement in the London Gazette of the calorific value of the gas which they intend to supply (in this Act referred to as “the declared calorific value”) and of the date (in this Act referred to as “the declared date”) from which they will supply gas of the declared calorific value which date shall not be more than three months from the date of the notice. Declaration of calorific value.

(2) After the declared date the charges which the Council may make in respect of the supply of gas shall be such charges as are hereinafter authorised for thermal units supplied in the form of gas :

Provided that this subsection shall have effect as regards the charges to any particular consumer as from the first reading by the Council of that consumer's meter after the declared date and not earlier.

(3) A copy of the notice referred to in subsection (1) of this section shall be sent to each local authority having jurisdiction within the limits of supply and to every consumer and to the Board of Trade.

26. After the declared date the price charged by the Council in respect of gas supplied by them to consumers by meter shall not exceed sixteen pence per therm within the district and nineteen pence per therm within so much of the limits of supply as is beyond the district : Price of gas.

Provided that the price charged within so much of the limits of supply as is beyond the district shall not

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— for the time being charged within the district.

Price of
gas prior
to declared
date.

27. Until the declared date the price charged by the Council in respect of gas supplied by them to consumers by meter shall not exceed six shillings per one thousand cubic feet within the district and seven shillings and twopence within so much of the limits of supply as is beyond the district :

Provided that the price charged within so much of the limits of supply as is beyond the district shall not exceed by more than one shilling and twopence per thousand cubic feet the price for the time being charged within the district.

Charge for
gas supplied
by means
of pre-
payment
meters.

28.—(1) The Council may demand in respect of gas supplied through a prepayment meter a not greater charge than in respect of gas supplied to private consumers within the limits of supply through any other kind of meter or by any other method of supply.

(2) As from the declared date the charge for the hire of any prepayment meter and fittings to be used therewith shall be a sum of money calculated according to the number of therms supplied and the maximum charge shall be three decimal six pence per therm if a cooking stove is included and threepence per therm if a cooking stove is not included.

(3) The charge for the hire of a prepayment meter without fittings shall be a sum of money calculated according to the number of therms supplied (when the maximum rate of charge shall be twopence per therm) or at the rate of ten per centum per annum on the cost of the meter whichever shall be the higher.

(4) The said charges shall include the providing letting fixing repairing and maintenance of the meter and fittings or of the meter (as the case may be) and the cost of collection and other costs incurred by the Council in connection therewith.

(5) For the purpose of this section the expression "prepayment meter" means any meter or appliance by which the quantity of gas supplied is regulated according to the amount of money prepaid therefor.

29. The number of therms supplied to any consumer shall be ascertained by multiplying the number of cubic feet of gas registered by his meter by the number of British thermal units comprised in the declared calorific value and dividing the product by one hundred thousand.

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 Measure of
 therms
 supplied.

30. If at any time the Council intend to alter the declared calorific value they shall give notice by advertisement in the London Gazette of their intention to supply as from a date to be therein specified and being not less than three months from the date of such notice gas of such calorific value as may be declared in the notice and the calorific value so declared shall as from the date so specified be the declared calorific value for the purposes of this Act. A copy of the notice required by this section shall be sent to each local authority and to every consumer and to the Board of Trade.

Variation
 of declared
 calorific
 value.

31. If and so often as the Council shall alter the declared calorific value they shall at their own expense effect such alteration adjustment or replacement of the burners in the consumers' appliances as may be necessary to secure that the gas can be burned with safety and efficiency except in the case of any consumer who objects to such alteration adjustment or replacement as aforesaid.

Adjust-
 ment of
 consumers'
 burners.

32. If the declared calorific value is less than three hundred and fifty British thermal units the minimum permissible pressure at which gas may be supplied shall be as follows :—

Pressure.

Where the declared calorific value is below three hundred and fifty British thermal units and not below three hundred British thermal units the minimum permissible pressure shall be two and a half inches;

Where the declared calorific value is below three hundred British thermal units the minimum permissible pressure shall be such pressure (not being less than three inches) as shall be prescribed by the gas referees.

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Applica-
tion of pro-
visions of
Gas Regula-
tion Act
1920.

33. On and after the declared date sections 2 4 5 6 7 8 and 9 of the Gas Regulation Act 1920 shall apply to the Council in the like manner as those sections apply to undertakers in respect of whom an order under section 1 of that Act has been made by the Board of Trade.

Purchase
of addi-
tional
lands by
agreement.

34. The Council may for the purposes of the gas undertaking purchase take and hold by agreement in addition to the lands described in the Second Schedule to this Act upon which the gas works from which gas is supplied within the district and elsewhere are erected any lands and hereditaments not exceeding in the whole ten acres which the Council may require but the Council shall not create or permit a nuisance on any such lands and no lands shall be used by the Council for the purpose of manufacturing gas or residual products except the lands described in the Second Schedule to this Act.

Power to
lay pipes
in private
streets
outside
district.

35. The Council may on the application of the owner or occupier of any premises within the limits of supply outside the district which abut on any street laid out but not dedicated to public use supply those premises with gas and for that purpose the Gasworks Clauses Act 1847 shall apply as if section 7 of that Act were excepted from incorporation in this Act :

Provided that nothing in this section shall apply to any street belonging to and forming the approach to any station or depôt of a railway company except with the consent of that company which consent shall not be unreasonably withheld nor shall the Council in carrying out the works authorised by this section unreasonably obstruct or interfere with the convenient access to any such street.

Supply of
gas where
consumer
has separate
supply.

36. Notwithstanding anything in the Gasworks Clauses Act 1871 or any other Act a person shall not be entitled to demand or continue to receive for the purposes of a stand-by supply only from the Council a supply of gas for any premises having a separate supply of gas or a supply (in use or ready for use for the purposes for which the stand-by supply of gas is required) of electricity steam or other form of energy unless he has agreed to pay to the Council such minimum annual sum as will give them a reasonable return on the capital expenditure

incurred by them in providing such stand-by supply and will cover other standing charges incurred by them in order to meet the possible maximum demand for those premises. The sum so to be paid shall be determined in default of agreement by arbitration in manner provided by the Arbitration Act 1889. A.D. 1929.
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37. At least twenty-four hours' notice shall be given to the Council by every gas consumer either personally at the office of the Council or in writing before he shall quit any premises supplied with gas by meter by the Council and in default of such notice the consumer so quitting shall be liable to pay to the Council the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Council to supply gas to such premises whichever shall first occur. Notice of the effect of this enactment shall be endorsed upon every demand note for gas charges payable to the Council. Gas consumers to give notice to Council before removing.

38. A notice to the Council from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Council or be given by the consumer personally at the office of the Council. Notice to discontinue supply of gas.

39.—(1) The Council may purchase sell let for hire fix repair and remove but shall not manufacture engines stoves ranges pipes and other gas fittings for lighting motive heating ventilating cooking or any other purposes and may provide all materials and do all work necessary or proper in that behalf and with respect thereto may demand and take such remuneration or rents and charges and make such terms and conditions as may be agreed upon. Power to supply gas fittings &c.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under process of any court or proceedings in bankruptcy against the person in whose possession the same may be and notwithstanding that they be fixed or fastened to any part of the premises in which they may be situate or to the soil under any such premises

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A.D. 1929. shall at all times continue to be the property of and
— removable by the Council :

Provided that such fittings are marked or impressed with a sufficient mark or brand indicating the Council as the actual owners thereof; and

Provided also that nothing in this subsection shall affect the amount of the assessment for rating of any premises upon which any such fittings shall be fixed.

(3) In carrying out their powers under this section—

(a) the Council shall so adjust the charges to be made by them for any such fittings or for the fixing repairing or removal thereof as to meet any expenditure by them under this section in connection therewith including interest upon moneys borrowed for those purposes and all sums applied to sinking fund for repayment of moneys so borrowed;

(b) every sum charged by the Council in respect of the provision of such fittings or the fixing repairing or removal thereof shall be separately stated on every demand note delivered by the Council to the consumer;

(c) the total sums expended and received by the Council in connection with the purposes in this section mentioned in each year (including interest and sinking fund) shall be separately shown in the published accounts of the gas undertaking for that year.

(4) If any fittings are sold or let for hire by the Council under the provisions of this section the price paid by the purchaser or the rent paid by the hirer as the case may be shall subject in the case of fittings let on hire to the deduction of sums expended on the maintenance of such fittings be applied by the Council in the payment of interest and the repayment of principal in respect of any loan from the proceeds of which the fittings were purchased by the Council so long as any balance of the loan remains outstanding.

Removal
of fittings
where gas
supply dis-
continued.

40. The power to enter premises and remove pipes meters and fittings or apparatus conferred upon the Council by section 22 of the Gasworks Clauses Act 1871 shall extend to all cases in which any person entering

into occupation of any premises previously supplied with gas by the Council shall not require to take a supply of gas from the Council or to hire all or any of the pipes meters fittings or apparatus belonging to the Council. A.D. 1929.
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41. In the event of any meter used by a consumer of gas being tested in manner provided by regulations made by the Board of Trade under the Gas Regulation Act 1920 and being proved to register erroneously within the meaning of the said regulations such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. Period of error in defective meters.

The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Council shall be paid by or to the Council to or by the consumer as the case may be and shall be recoverable in the like manner as gas charges are recoverable by the Council.

42. If a person requiring a supply of gas from the Council has previously quitted premises at which gas was supplied to him by the Council without paying to them all gas charges and meter rent due from him to the Council they may refuse to furnish to him a supply of gas until he pays the same. Power to refuse supply to persons in debt for other premises.

43.—(1) In any case in which the Council are by virtue of any enactment relating to the gas undertaking authorised to cut off and discontinue the supply of gas to any premises in consequence of any default on the part of the occupier of the premises it shall be lawful for the Council without prejudice to any other remedy which may be lawfully available to them to disconnect at the meter the service pipe (whether belonging to the consumer or to the Council) and any person who shall reconnect such service pipe with the meter without the consent of the Council shall be deemed to commit an offence within the meaning of section 18 of the Gasworks Clauses Act 1847 : As to mode of cutting off supplies.

Provided that if and so soon as the matter complained of shall have been remedied nothing in this section shall prejudice or interfere with any rights vested in any person by virtue of section 11 of the Gasworks Clauses Act 1871.

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(2) For the purposes of this section the Council subject to the provisions of section 22 of the Gasworks Clauses Act 1871 shall have and may exercise the like powers of entry as are exerciseable under that section.

Expenses
of re-con-
necting dis-
continued
supply.

44. In any case in which in consequence of any default on the part of the occupier of any premises the Council have cut off the supply of gas to such premises and the occupier so in default shall desire to resume such supply he shall pay to the Council the expenses of reconnecting the supply and the Council shall not be under any obligation to supply gas to such occupier until he shall have made good the default and paid such expenses.

Council
may con-
tract for
supply and
purchase in
bulk.

45. The Council may contract with any local authority company or persons for the supply by the Council to them or for the supply to the Council by them of gas in bulk upon such terms and conditions as may be agreed upon but nothing in this section shall authorise the Council to lay any mains or interfere with any street beyond the limits of supply :

Provided that the Council shall not supply gas under any such contract beyond the limits of supply if and so long as such supply would interfere with the supply of gas within those limits.

Dwelling-
houses for
employees
offices show-
rooms &c.

46.—(1) The Council may purchase or take on lease houses cottages and other buildings for persons in their employment in connection with the gas undertaking and offices showrooms and other buildings for the purposes of the gas undertaking and may erect fit up maintain and let any such buildings upon any lands for the time being belonging to or leased to the Council for the purposes of the gas undertaking.

(2) The Council may in connection with and for the purposes of the gas undertaking fit up showrooms and offices and exhibit specimen installations and give demonstrations of the uses to which gas can be put and may appoint and pay persons for the purpose.

For pro-
tection of
Salop and
Stafford
County
Councils.

47. The following provisions for the protection of the county council of the administrative county of Salop and the county council of the administrative county of Stafford respectively (each of whom in the application of the provisions of this section to their respective

counties are referred to in this section as "the county council") shall notwithstanding anything in this Act contained and unless otherwise agreed between the Council and the county council apply and have effect with respect to the execution of any works and the exercise of any powers under this Part of this Act by the Council in or affecting any main road or any county or main road bridge or the approaches thereto (that is to say) :—

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- (1) Section 8 of the Gasworks Clauses Act 1847 as incorporated with this Act shall in relation to any such road bridge or approach have effect as if the word "fourteen" were substituted for the word "three" in that section :
- (2) All mains pipes and works (including replacements of mains pipes and works existing at the date of the passing of this Act) (in this section referred to as "the works") to be laid in or along any such road or in or upon or across any such bridge or approach shall be laid in such position in or at the side thereof as the county council in writing under the hand of the county surveyor may reasonably direct :
- (3) (i) The county council may if they think fit serve a notice upon the Council stating that they desire to exercise or discharge all or any part of any of the powers or duties of the Council under this Part of this Act as specified in such notice in relation to the reinstating or making good any such road bridge or approach and may amend or revoke any such notice by another notice similarly served ;
(ii) Where the county council have given notice that they desire to exercise or discharge any such specified powers and duties of the Council then so long as that notice remains in force—
(a) The Council shall not be entitled to proceed themselves to exercise or discharge any such specified powers or duties as afore-said except where they have required the county council to exercise or discharge those powers or duties and the county council have

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refused or neglected to comply with that requisition as hereinafter provided or in cases of emergency;

(b) In addition to any other notices which they are required to give under the provisions of the Gasworks Clauses Act 1847 and this Act the Council shall not more than four days and not less than two days before the exercise or discharge of any such powers or duties so specified as aforesaid is required to be commenced serve a requisition upon the county council stating the time when that exercise or discharge is required to be commenced and the manner in which any such powers or duties are required to be exercised or discharged;

(c) Upon the receipt of any such requisition as last aforesaid the county council may proceed to exercise or discharge any such powers or duties as required by the Council subject to the like restrictions and conditions so far as they are applicable as the Council would themselves be subject to in that exercise or discharge;

(d) If the county council decline or for twenty-four hours after the time when any such exercise or discharge of any powers or duties is by any requisition required to be commenced neglect to comply with the requisition the Council may themselves proceed to exercise or discharge the powers or duties therein specified in like manner as they might have done if such notice as aforesaid had not been given to them by the county council;

(e) In any case of emergency the Council may themselves proceed at once to exercise or discharge so much of any such specified powers or duties as aforesaid as may be necessary for the actual remedying of any defect from which the emergency arises without serving any requisition on the county council but in that case the Council shall within twelve hours after they begin to

exercise or discharge such powers or duties as aforesaid give information thereof in writing to the county council; A.D. 1929.

(f) If the Council exercise or discharge any such specified powers or duties as aforesaid otherwise than in accordance with the provisions of this section they shall be liable for each offence to a penalty not exceeding ten pounds and to a daily penalty not exceeding five pounds. Provided that the Council shall not be subject to any such penalties as aforesaid if the court are of opinion that the case was one of emergency and that the Council complied with the requirements of this subsection so far as was reasonable under the circumstances;

(g) All expenses properly incurred by the county council in complying with any requisition of the Council under this section shall be repaid to them by the Council and may be recovered summarily;

(iii) Nothing in this subsection shall in any way affect the rights of the Council to exercise or discharge any powers or duties conferred or imposed upon them by this Act in relation to the execution of any works beyond the actual reinstating or making good any such road bridge or approach as in this subsection mentioned:

- (4) If the county council desire to alter the level of deviate or improve any such road or the approaches to any such bridge in or along which any of the works shall have been laid the Council shall with all reasonable dispatch on receiving notice in writing under the hand of the clerk of the county council or the county surveyor so to do alter the position of the said works in the manner and to the extent prescribed by such notice or as in case of difference shall be determined in the manner hereinafter prescribed and the county council shall repay to the Council the expense reasonably incurred by the Council in effecting

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any such alteration of the position of the said works :

- (5) If the county council desire at any time to remove alter rebuild widen or repair any such bridge or the roadway over the same over or near or attached to which any of the works are carried in the same manner as the county council might have removed altered rebuilt widened or repaired such bridge or the roadway over the same if this Act had not been passed and the said works had not been laid over or near or attached to such bridge the county council shall not make any compensation to the Council for any expense or loss to which the Council may be put by reason or in consequence of any such removal alteration rebuilding widening or reparation and in the event of any such bridge or the roadway over the same over or near or attached to which the said works are laid being removed altered rebuilt widened or repaired as aforesaid the Council shall at their own cost in all things alter the position of any works by which the said works are carried over or near or attached to such bridge or the roadway over the same Provided that during the removal alteration rebuilding widening or reparation of such bridge or the roadway over the same as aforesaid the county council shall afford all reasonable facilities to enable the Council temporarily to carry the said works across any stream or brook so as not to interrupt the continuous supply of gas or to diminish the pressure of such supply through the said works :
- (6) The works shall be so executed as not to stop or (so far as reasonably practicable) impede or interfere with the traffic on any such road or over any such bridge or approach and no greater consecutive length than one hundred yards of any such road bridge or approach shall be broken up at any one time :
- (7) The Council shall indemnify the county council against any claim for damage that may be made against the county council and against

any injury loss cost or expense which may be caused to or incurred by the county council by reason or in consequence of the bursting leakage or failure of the works :

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- (8) If any difference shall arise under this section the same shall be determined by an arbitrator to be agreed on between the parties or failing agreement to be appointed on the application of either party after notice to the other by the President of the Institution of Civil Engineers and (subject as aforesaid) the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

48. The following provisions for the protection of the London Midland and Scottish Railway Company (hereinafter referred to as "the company") shall unless otherwise agreed between the Council and the company be in force and have effect :—

For protection of London Midland and Scottish Railway Company.

- (1) In laying down or executing and also (except in cases of emergency) in effecting the repairs and renewals of any mains pipes or other works of the Council by this Part of this Act authorised (in this section referred to as "the works of the Council") upon across over under or in any way affecting the railways canals or other property of the company the same shall be done except as in this section is otherwise provided under the superintendence (if the same be given) and to the reasonable satisfaction of the principal engineer of the company and except in cases of repair or emergency according to plans to be submitted to and reasonably approved by him. Provided that if the said engineer shall not express his disapproval of such plans within fourteen days from the submission thereof he shall be deemed to have approved thereof :
- (2) The Council shall restore any road which is repairable by the company so far as the same may be disturbed or interfered with by or owing to any of the works of the Council and the works of the Council shall be constructed and executed so as not to cause any injury to the railways

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canals or other property of the company or interruption to the passage or conduct of traffic over such railways or canals or at any station thereon :

- (3) If any such injury or interruption as aforesaid shall arise from or be in any way owing to any of the acts operations matters and things aforesaid or the bursting leakage or failure of any such mains pipes or works the Council shall make compensation in respect thereof to the company :
- (4) Any dispute or difference which may arise between the company and the Council with reference to the provisions of this section or in any way arising thereout or as to any works to be carried out in pursuance thereof shall failing agreement be settled by arbitration by an engineer to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject thereto the Arbitration Act 1889 shall apply to any such arbitration.

PART IV.

FINANCIAL.

Power to borrow.

49.—(1) The Council may from time to time independently of any other borrowing power borrow at interest the sum requisite for the purpose of paying the costs charges and expenses referred to in the section of this Act of which the marginal note is "Costs of Act" and in order to secure the repayment thereof and the payment of interest thereon they may mortgage or charge the revenues of the Council and they shall pay off all moneys so borrowed within five years from the passing of this Act.

(2) (a) The Council may also with the consent of the Minister of Health borrow money for providing working capital for the purposes of the gas undertaking and such further money as may be necessary for any of the purposes of this Act.

(b) In order to secure the repayment of any money borrowed under this subsection and the payment of

interest thereon the Council may mortgage or charge the revenues of the Council. A.D. 1929.

(c) Any money borrowed under this subsection shall be repaid within such period as may be prescribed by the Minister of Health.

(3) In calculating the sums the Council may borrow under any other enactment any sums they may borrow under this Act shall not be reckoned and the power of the Council of borrowing and re-borrowing under and for the purposes of this Act shall not be restricted by any of the provisions or regulations of the Public Health Acts.

50. All moneys borrowed by the Council under the powers of this Act shall be applied only to the purposes for which they are authorised to be borrowed and (except moneys borrowed for providing working capital) to which capital is properly applicable. Applica-
tion of
money
borrowed.

51. The Council may raise all or any moneys which they are authorised to borrow or re-borrow under this Act by mortgage or by the issue of debentures or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one way and partly in another or others. Provided that the provisions of this Act relating to sinking funds shall apply to sinking funds formed for the repayment of moneys borrowed under the Local Loans Act 1875 instead of the provisions of sections 15 and 16 of that Act. Mode of
raising
money.

52. Sections 236 to 239 inclusive of the Public Health Act 1875 with any necessary modifications shall extend and apply to mortgages granted under this Act. Provisions of
Public Health
Act 1875 as to
mortgages to
apply.

53. The Council shall pay off all moneys borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or others of them and the payment of the first instalment or the first payment to the sinking fund shall be made within one year or when the money is repaid by half-yearly instalments or by half-yearly payments to the sinking fund within six months of the date of borrowing. Mode of
payment
off of
money
borrowed.

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Sinking
fund.

54.—(1) If the Council determine to repay by means of a sinking fund any moneys borrowed by virtue of any statutory borrowing power such sinking fund shall be formed and maintained either—

- (a) by payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is hereinafter called a “non-accumulating sinking fund”; or
- (b) by payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three pounds ten shillings per centum per annum or such other rate as the Minister of Health may from time to time approve will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed. A sinking fund so formed is hereinafter called an “accumulating sinking fund.”

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in statutory securities the Council being at liberty from time to time to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Council towards the equal annual payments to the fund.

(4) The Council may at any time apply the whole or any part of any sinking fund in or towards the discharge of the moneys for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Council shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund or part thereof so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

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(5) (a) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Council.

(b) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Council in addition to the payments provided for by this Act.

(7) If it appears to the Council at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Council to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided that if it appears to the Minister of Health that any such increase is necessary the Council shall increase the payments to such extent as the Minister of Health may direct.

(8) If the Council desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Minister of Health be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Council may reduce the payments to the sinking fund either temporarily or permanently to such

A.D. 1929. — amounts as will in the opinion of the Minister of Health be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Minister of Health be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Council may with the consent of the Minister discontinue the annual payments to such sinking fund until the Minister shall otherwise direct.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Council with the consent of the Minister of Health may determine.

Power to
re-borrow.

55.—(1) The Council shall have power—

(a) To borrow for the purpose of paying off any moneys previously borrowed under any statutory borrowing power which are intended to be forthwith repaid; or

(b) To borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Council in repaying moneys previously borrowed under any statutory borrowing power and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be paid within that portion of the period prescribed for the repayment of that loan which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section.

(3) The Council shall not have power to borrow for the purpose of making any payment to a sinking fund or for paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Council shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid— A.D. 1929.
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- (a) by instalments or annual payments; or
- (b) by means of a sinking fund; or
- (c) out of moneys derived from the sale of land; or
- (d) out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

56. When under the provisions of this Act or of any Act of Parliament or of any Order confirmed by or having the effect of an Act of Parliament whether passed confirmed or made before or after the passing of this Act the Council are empowered or required to form a sinking fund or loans fund the appropriate yearly sums and the accumulations thereof (if any) required to be set apart for or paid into such sinking fund or loans fund for the purpose of providing for the repayment of moneys borrowed by the Council shall be paid and provided out of the general rate fund and general rate and all interest on and annual proceeds arising from the investments of the said yearly sums and the accumulations thereof (including such sums and accumulations as have been provided prior to the passing of this Act) shall be paid into and shall form part of the general rate fund. Payments
into sink-
ing fund.

57.—(1) Where the Council are authorised by any statutory borrowing power to raise money for any purpose they may instead of exercising such borrowing power by the issue of any fresh security in respect thereof exercise the said power and raise the said money either wholly or partially by using for such purpose so much of any money for the time being forming part of a sinking fund as shall be available for the repayment of— Power to
use sinking
fund
instead of
borrowing.

- (a) A loan which is secured by a charge on the same rate fund or revenue as would be specifically chargeable as the security for the repayment of a loan under the statutory borrowing power if the same were raised by the issue of a fresh security and which is not shown by the deed to be raised in exercise of a particular borrowing power specified therein; or

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(b) Moneys borrowed and charged upon all the revenues of the Council and not shown by the deed to be raised in exercise of a particular borrowing power specified therein.

(2) The Council when exercising the powers conferred on them by this section shall—

(a) Withdraw from the sinking fund a sum equal to the amount of the statutory borrowing power proposed to be exercised by the user of money from such sinking fund;

(b) Credit such sinking fund with the repayment of an amount of the principal moneys for the repayment of which the fund is established equal to the sum withdrawn from the sinking fund and thereupon the amount so credited shall be deemed to be principal moneys discharged by application of the sinking fund ;

(c) Debit the account of the statutory borrowing power proposed to be exercised with an amount of the principal money equal to the sum withdrawn from such sinking fund and thereupon the statutory borrowing power shall be deemed to have been exercised as fully as if the said amount had been raised by the issue of a fresh security and the provisions of any enactment as to the repayment and re-borrowing of sums raised under the statutory borrowing power shall apply thereto accordingly.

(3) The provisions of this section shall not apply to any sinking fund formed under the Local Loans Act 1875.

(4) The Council shall furnish all such information (if any) to the Minister of Health with regard to the exercise of the powers contained in this section as that Minister shall require.

Return to
Minister of
Health with
respect to
repayment
of debt.

58.—(1) The clerk shall if and when he is requested by the Minister of Health so to do transmit to the Minister a return showing the provision made for the repayment of any loans raised by the Council under any statutory borrowing power.

(2) The return shall show such particulars and shall be made up to such date and in such form as the Minister may require and shall if so required by him be verified by

statutory declaration of the clerk or other the chief accounting officer of the Council and shall be transmitted within one month after the making of the request and in the event of his failing to make such return the clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by the Minister in a court of summary jurisdiction and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court. A.D. 1929.

(3) If it appears to the Minister by such a return as aforesaid or otherwise that the Council have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by any enactment relating to the statutory borrowing power or by the Minister in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purpose other than those authorised the Minister may by order direct that the sum in such order mentioned not exceeding the amount in respect of which default has been made shall be paid or applied in the manner and by the date in such order mentioned and the Council shall notify the Minister as soon as the order is complied with and any such order shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

59. A person lending money to the Council under this Act shall not be bound to inquire as to the observance by the Council of any of the provisions of this Act or be bound to see to the application or be answerable for any loss misapplication or non-application of the money lent or of any part thereof. Protection of lender from inquiry.

60. The Council shall not be bound to see to the execution of any trust whether express implied or constructive to which any loan or security for loan given by them may be subject but the receipt of the person in whose name any loan or security for loan stands in the register of mortgages of the Council shall be a sufficient discharge to the Council in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Council have had Council not to regard trusts.

A.D. 1929. express or implied notice of any such trust or of any charge or encumbrance upon or transfer of such loan or security or any part thereof or interest thereon not entered in their register.

Receipt in case of persons not sui juris. **61.** If any money is payable to a mortgagee being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Council.

Expenses of execution of Act. **62.** All expenses incurred by the Council in carrying into execution the provisions of this Act except such of those expenses as are to be paid out of borrowed moneys or are otherwise provided for may be paid out of the general rate fund and general rate.

Interest on mortgages held jointly. **63.** Where more persons than one are registered as joint holders of any mortgage of the Council any one of them may give an effectual receipt for any interest thereon unless notice to the contrary has been given to the Council or the treasurer by any other of them.

Revenue and expenses of Marsh Estate and gas undertaking. **64.** All money received by the Council on account of the revenue of the gas undertaking and on revenue account in respect of the Marsh Estate shall be carried to and shall form part of the general rate fund and all payments and expenses made and incurred in respect of the gas undertaking and the said estate shall be paid out of that fund.

Appropriation of part of capital in respect of Marsh Estate for provision of recreation ground. **65.** Within five years from the appointed day the Council shall appropriate out of the sums standing to the credit of the trustees on the appointed day on capital account a sum not being less than eight hundred pounds and shall apply the same for and in connection with the acquisition and laying out of lands in or in the neighbourhood of the district for the purposes of a recreation ground under and subject to the provisions of the Public Health Act 1875 and any Acts amending the same.

Reserve fund in respect of gas undertaking. **66.** The Council may if they think fit provide a reserve fund in respect of the gas undertaking by setting aside such an amount as they may from time to time think reasonable and investing the same in statutory securities and accumulating the same until the fund so formed amounts to a sum equal to one-tenth of the aggregate amount of capital expenditure on the gas

undertaking which fund shall be applicable to meet any extraordinary claim or demand at any time arising against the Council in respect of the gas undertaking or for payment of the cost of renewing improving or extending any part of the works forming part thereof or otherwise for the benefit of the gas undertaking and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens. Provided that resort may be had to the reserve fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the prescribed maximum. A.D. 1929.

67.—(1) The Council shall keep their accounts in respect of the Marsh Estate so as to distinguish capital from revenue and as to revenue so as to show under a separate heading or division on the one side all receipts in respect of the Marsh Estate and on the other side all payments and expenses in respect of the Marsh Estate such payments and expenses being divided so as also to show in each case the amounts expended in respect of each of the following purposes (that is to say):—

Separate accounts in respect of Marsh Estate.

(a) The expenses of managing and administering the Marsh Estate;

(b) The interest on moneys borrowed by the Council for the purposes of or connected with the Marsh Estate;

(c) The requisite appropriations instalments or sinking fund payments in respect of moneys borrowed by the Council for purposes of or connected with the Marsh Estate;

(d) All other expenses (if any) in connection with the Marsh Estate.

(2) The Council shall show in their accounts relating to the Marsh Estate all items (including the payments in respect of loans applicable thereto) which ought to be entered therein in order to show the financial position of the Marsh Estate.

68.—(1) The Council shall keep their accounts in respect of the gas undertaking so as to distinguish capital from revenue and as to revenue so as to show under a separate heading or division on the one side all receipts in respect of the gas undertaking and on the other side

Separate accounts in respect of gas undertaking.

A.D. 1929. all payments and expenses in respect of the gas undertaking such payments and expenses being divided so as also to show in each case the amounts expended in respect of each of the following purposes (that is to say) :—

- (a) The working and establishment expenses and cost of maintenance of the gas undertaking;
- (b) The interest on moneys borrowed by the Council for the purposes of or connected with the gas undertaking;
- (c) The requisite appropriations instalments or sinking fund payments in respect of moneys borrowed for the purposes of the gas undertaking;
- (d) All other expenses (if any) of maintaining the gas undertaking;
- (e) The amount (if any) paid to any reserve fund which the Council are by this Act authorised to maintain.

(2) Notwithstanding anything contained in this Act the Council shall show in their accounts relating to the gas undertaking all items (including the payments in respect of loans applicable thereto) which ought to be entered therein in order to show the financial position of the gas undertaking.

PART V.

MISCELLANEOUS.

Consent of Council to be in writing.

69. All consents given by the Council under the provisions of this Act or of any local Act Provisional Order byelaw or regulation for the time being in force within the district shall be given in writing and unless otherwise prescribed shall be given under the hand of the clerk or other duly authorised officer of the Council.

Evidence of appointments authority &c.

70. Where in any legal proceedings taken by or on behalf of or against the Council or any officer servant solicitor or agent of the Council or any committee of the Council under this Act or under any general or local Act for the time being in force in the district it becomes necessary to prove the appointment

or authority of any officer servant solicitor or agent of the Council or of any committee of the Council or to prove any resolution or order of the Council or any resolution order or report of any committee of the Council a certificate of such appointment authority resolution order or report purporting to be authenticated by the signature of the clerk shall be *prima facie* evidence of such appointment authority resolution order or report without further proof of the holding of any meeting or the production of any minute book or other record or document. A.D. 1929.

71.—(1) Where any notice or demand under this Act or under any local Act or Order or any byelaw for the time being in force within the district requires authentication by the Council the signature of the clerk or other duly authorised officer of the Council shall be sufficient authentication. *Authenti-
cation and
service of
notices &c.*

(2) Notices demands orders and other documents required or authorised to be served under this Act or under any local Act Order or byelaw for the time being in force within the district may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served. Provided that in the case of any company any such notice demand order or document shall be delivered or sent by post addressed to the secretary of the company at their registered office or at their principal office or place of business.

72. Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action. *Recovery of
demands.*

73. Where the payment of more than one sum by any person is due under any Act or Order from time to time in force within the district any summons or warrant issued for the purposes of any such Act or Order in respect of that person may contain in the body thereof or in a schedule thereto all the sums payable by him. *Several
sums in one
summons.*

[Ch. lxxvii.] *Newport (Salop)* [19 & 20 GEO. 5.]
Urban District Council Act, 1929.

A.D. 1929.

Informa-
 tions by
 whom to be
 laid.

74. Save as herein expressly provided all informations and complaints under or for the breach of any of the provisions of this Act or of any byelaw made thereunder may be laid and made by any officer of the Council duly authorised in that behalf or by the clerk.

Recovery of
 penalties
 &c.

75. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner. Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Penalties
 to be paid
 over to
 treasurer.

76. All penalties recovered on the prosecution of the Council or any officer of the Council on their behalf under this Act or under any byelaw thereunder shall be paid to the treasurer and be by him carried to the credit of the general rate fund or to such other fund as the Council shall direct.

Compensa-
 tion how
 to be deter-
 mined.

77. When any compensation costs damages or expenses is or are by this Act directed to be paid and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided by the Public Health Acts.

Powers of
 Act cumu-
 lative.

78. All powers rights and remedies given to the Council by this Act shall (except where otherwise expressly provided) be deemed to be in addition to and not in derogation of any other powers rights or remedies conferred on them or on any committee appointed by them by Act of Parliament charter law or custom and the Council or such committee as the case may be may exercise such other powers and be entitled to such other rights and remedies as if this Act had not been passed. Provided that no person shall incur more than one penalty (other than a daily penalty for a continuing offence) for the commission of the same offence.

A.D. 1929.

79. Section 265 of the Public Health Act 1875 shall extend and apply to the purposes of any local enactment as if the same were re-enacted therein.

Application of
section 265 of
Public Health
Act 1875.

80. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being liable to any rate.

Judges not
disqualified.

81.—(1) The Minister of Health may direct any inquiries to be held by his inspectors which he may deem necessary in regard to the exercise of any powers conferred upon him or the giving of any consents under this Act and the inspectors of the Minister shall for the purposes of any such inquiry have all such powers as they have for the purposes of inquiries directed by the Minister under the Public Health Act 1875.

Inquiries
by Minister
of Health.

(2) The Council shall pay to the Minister of Health any expenses incurred by the Minister in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by the Minister for the services of such inspector.

82. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown.

Crown
rights.

83. Nothing in this Act contained shall extend or be construed to extend to defeat lessen or prejudice the right title or interest of the lord of the manor of Newport to the seignories and royalties incident and belonging to the same but the lord of the said manor for the time being shall and may from time to time and at all times for ever hereafter hold and enjoy all rents services royalties privileges and appurtenances to the manor or to the lord thereof for the time being incident appendant belonging or appertaining to the same and in as full ample and beneficial a manner to all intents and purposes as the lord of the said manor for the time being could or might have held or enjoyed the same if this Act had not been passed.

Saving
rights of
lord of
manor.

84.—(1) The Newport Gas Light and Coke Company Limited shall deliver to the Registrar of Joint Stock Companies a printed copy of this Act and he shall retain and register the same and if such copy is not so delivered within three months from

Registra-
tion of
Act.

[Ch. lxxvii.] *Newport (Salop)* [19 & 20 GEO. 5.]
Urban District Council Act, 1929.

A.D. 1929. the passing of this Act the said company shall incur
— a penalty not exceeding two pounds for every day
after the expiration of those three months during which
the default continues and any director or manager
who knowingly and wilfully authorises such default
shall incur a like penalty Every penalty under this
section shall be recoverable summarily.

(2) There shall be paid to the registrar by, the
said Company on such copy being registered the like
fee as is for the time being payable under the Companies
(Consolidation) Act 1908 on registration of any document
other than a memorandum of association or the abstract
required to be filed with the registrar by a receiver
or manager or the statement required to be sent to
the registrar by the liquidator in a winding up in
England.

Costs of
Act.

85. The costs charges and expenses preliminary
to and of and incidental to the preparing applying
for obtaining and passing of this Act shall after
taxation by the taxing officer of the House of Lords
or of the House of Commons be paid by the Council
in the first instance out of the general rate fund and
general rate and ultimately may be paid out of money
to be borrowed under the powers of this Act for that
purpose.

The SCHEDULES referred to in the
foregoing Act.

A.D. 1929.

FIRST SCHEDULE.

PROPERTIES OF THE NEWPORT TOWN AND MARSH
TRUSTEES.

PART I.

PERSONAL PROPERTY.

The following funds standing in the names of the Official Trustees of Charitable Funds :—

	£	s.	d.
2½ per cent. consols - - - - -	2,902	6	4
New Zealand 4 per cent. stock 1929 - -	656	9	8
Great Indian Peninsular Railway Annuity B	22	0	0

PART II.

LANDS.

No. on Ordnance Map (1902 Edition).	Description.	Surname and other Names of Tenant.	Area in Acres.
Part 205 and 206.	Pasture land	Hammett Edwin George -	4·089
Part 205 -	Isolation hospital.	Newport (Salop) Urban District Council - -	·092
208 267 268 269 270 271 parts 259 261 262 265.	Arable and pasture land.	Hesbrook William - -	39·064
218 266 - -	Pasture land	Wheat Walter - - -	7·943
219 220 264 part 263.	Arable and pasture land.	Allen John - - -	9·894
221 parts 223 224.	Arable and pasture land.	Cornmell John - - -	11·787
229 - -	Pasture land	Newport (Salop) Cricket and Lawn Tennis Club.	3·929
Part 230 - -	Pasture land	Brown John Carrier - -	·084
Part 233 - -	Pasture land	Fowler Frank Percy - -	2·819

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Urban District Council Act, 1929.

A.D. 1929.

No. on Ordnance Map (1902 Edition).	Description.	Surname and other Names of Tenant.	Area in Acres.
256 - - -	Pasture land	Glassey Samuel Lester -	3·256
257 258 - -	Pasture land	The Managers of Newport Adams' Grammar School.	6·887
Parts 259 262	Pasture land	Evanson John - - - -	4·712
Part 261 - -	Pasture land	Bourne Edwin - - - -	2·306
	Land and building.	Newport (Salop) Gas Light and Coke Company Limited.	·744
Part 263 - -	Land - -	Newport Burial Board -	·185
	Garden -	Neville Edward - - -	·028
	Roadways and foot- paths.		

PART III.

PROPERTY PURCHASED BY THE TRUSTEES.

Description.	Surname and other Names of Tenant.
Dwelling-house numbered 1 Wellington Road Newport.	Smallman Harry.
Dwelling-house numbered 37 Upper Bar Newport.	Allen Ernest.
Dwelling-house numbered 39 Upper Bar Newport.	Fallows Sarah.
Dwelling-house numbered 1 Lower Bar Newport.	Brotherton William Henry.

SECOND SCHEDULE.

A.D. 1929.

LANDS UPON WHICH THE EXISTING GASWORKS OF THE
NEWPORT GAS LIGHT AND COKE COMPANY LIMITED
ARE ERECTED.

All that piece or parcel of land in the parish and urban district of Newport in the county of Salop having an area of 2 roods and 39 poles or thereabouts lying to the north of Avenue Road and bounded on the north-east and east by a private road leading from Avenue Road in a northerly or north-westerly and south-westerly direction to High Street on the north-west by lands belonging or reputed to belong to the Audley Engineering Company Limited Sarah Jane Cartwright and Joule and Sons Limited on the south-west by lands belonging or reputed to belong to the Newport Town and Marsh Trustees and Ellen Stanworth respectively and on the south-east by lands belonging or reputed to belong to the Fountain of Peace Lodge of Oddfellows.

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